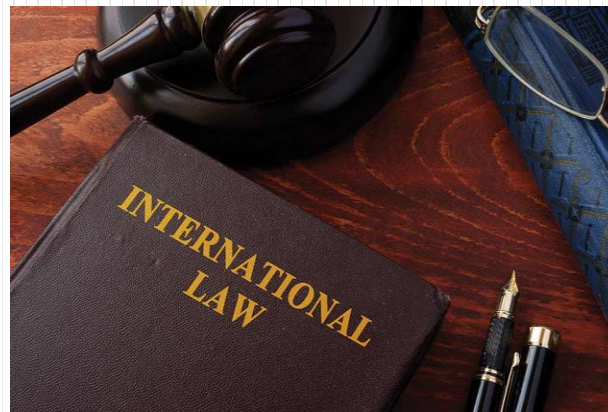


Public International Law

Chapter Three **Relationship Between International Law and Municipal** **Law**



Theories Developed to address the nexus between International Law and Municipal Law

- The relationship between international law and domestic law is object of different theories among which the most relevant are:
 - The Monist School of Thought
 - The Dualist Theory School of Thought
 - The Third Position
- Indeed, these theories and all other theories, aim nothing more or less than *the explanation of the interdependent and hierarchical relationship between the international law and domestic law.*

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- Indeed, the study and the analysis of relationship between the rules of international law and rules of domestic law has a particular importance, because the determination of solutions and dilemmas with regard to this multiple and multidimensional relationship inter alia defines the status of the states in the arena of the international relation and impacts directly to its status as an equal member of international community.
- In fact, the ensemble of rules which we define today as international law cannot be understood separated from the states domestic law.

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- **The Monist Theory:**
- Developed by **Kelsen**.
- The monists are united in accepting a unitary view of law as a whole and are opposed to the strict division posited by the positivists.
- It follows a **Kantian philosophy of law**, which favors a unitary conception of law where the states derive its laws from a superior source of law and a law that contradicts international law, stands invalid.

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- It suggests that the effect of international law is incorporated in the domestic legal system and it does not require a specific law that would necessitate to explicitly mentioning its inclusion.
- For e.g. if a particular state has ratified international human rights convention and its national laws restrict a certain freedom; the person being prosecuted can include the argument that the national laws are in violation of international laws and the judge would require the national law to stand invalid.
- **This approach places international law at a higher platform in respect of municipal laws.**

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- It creates a legal order which allows municipal laws to follow the international rules.
- However, if any contradiction arises between both laws, then international law would supersede the municipal laws and the national law would stand invalid.
- **Dualism:**
- One of the most notable proponents of dualist theory of international law was **German scholar Heinrich Triepel.**

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- *Positivism stresses the overwhelming importance of the state and tends to regard international law as founded upon the consent of states.*
- It is actual practice, illustrated by custom and by treaty that formulates the role of international law, and not formalistic structures, theoretical deductions or moral stipulations.
- Hence, when positivists such as *Triepel and Strupp* consider the relationship of international law and municipal law , they do so upon the basis of the supremacy of the state, and the existence of wide differences between the two functioning orders.

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- It stresses that the rules of the systems of international law and municipal law exist separately and cannot purport to have an effect on, or overrule the other.
- This theory holds that international law and domestic (internal) law are separate bodies of law, operating independently of each other.
- Under dualism, rules and principles of international law cannot operate directly in domestic law, and must be transformed or incorporated into domestic law before they can affect individual rights and obligations.

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- According to them, international law and internal law exists with a wide difference between its functioning.
- *It maintains that international law cannot interfere with the municipal laws as long as such rules of international law are not incorporated in the municipal laws.*
- *The transformation doctrine* is an integral part of the dualist approach, where international law is followed in by municipal law if the former is transformed into a national law.

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- A wider thesis of dualist approach is **the adoption doctrine**; where the international law cannot confer rights on municipal laws as far as the rules are not recognized as inclusive in the domestic laws that gives rise to obligation to follow such international rules.
- **The Third Position/Harmonization Theory:**
- A third approach, being somewhat a modification of the dualist position and formulated by **Fitzmaurice and Rousseau** amongst others, attempts to establish a recognized theoretical framework tied to reality.

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- It begins by denying that any common field of operation exists as between international law and municipal law by which one system is superior or inferior to the other.
- *Each order is supreme in its own sphere, much as French law and English Law in France and England.*
- Neither monism nor dualism can adequately explain the relationship between international law and domestic law and alternative theories have developed which regard international law as having a harmonization role.

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- If there is a conflict, domestic law is applied within the domestic legal system, leaving the State responsible at the international level for any breach of its international law obligations.
- **The Harmonization Doctrine** manages to remove the barriers between the two schools of monism and dualism and tries to remove the conflicts of ideologies between both schools.
- They argue that if both international law and municipal laws were different and independent from each other, calling them a “law” would be improper.

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- It suggests that both laws form one body of doctrine and the courts should try and minimize the differences created amongst both the laws through a process of a judicial harmonization.
- ***The outcome of such a doctrine would render both of these laws at an equivalent platform.***
- It does not harp on the supremacy or inferiority of either of the laws and rather uses the international laws to guide the municipal legal orders by a judicial process.

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- *This method of solving the problem does not delve into theoretical considerations, but aims at being practical and in accord with the majority of state practice and international judicial decisions.*
- In fact, the increasing scope of international law promoted most states to accept something of intermediate position, where the rules of international law are seen as part of a distinct system, but capable of being applied internally depending on circumstance, while domestic courts are increasingly being obliged to interpret rules of international law.

Municipal Laws before International Law

- *The general rule with regard to the position of municipal law within the international sphere is that a state which has broken a stipulation of international law cannot justify itself by referring to its domestic legal situation.*
- It is no defense to a breach of an international obligation to argue that the state acted in such a manner because it was following the dictates of its own municipal laws.
- Hence, *state practice and decided cases* have established this position and thereby prevented countries involved in international litigation from pleading municipal law as a method of circumventing international law.

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- **Article 27 of the Vienna Law of Convention on Law of Treaties**, 1969 lays down that in so far as treaties are concerned, a party may not invoke the provisions of its internal law as justification for its failure to carry out an international agreement, while **Article 46 (1)** provides that a state may not invoke the fact that its consent to be bound by a treaty has been expressed in violation of its internal law regarding competence to conclude treaties as invalidating its consent.
- **Such provisions are reflected in the case law.**

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- In the *Alabama Claims arbitration of 1872*, USA objected strenuously when Britain allowed a Confederate ship to sail from Liverpool to prey upon American shipping.
- It was held that the absence of British legislation necessary to prevent the construction or departure of the vessel could not be brought forward as a defense and Britain was accordingly liable to pay damages for the depredations caused by the warship in question.

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- *However, such expressions of the supremacy of international law over municipal law in international tribunals do not mean that the provisions of domestic legislation are either irrelevant or unnecessary.*
- *On the contrary, the role of internal legal rules is vital to the workings of the international legal machine.*
- One of the ways that is possible to understand and discover a state's legal position on a variety of topics important to international law is by examining municipal laws.
- For e.g. a state will express its opinion on such vital international matters as the extent of its territorial sea, or the jurisdiction it claims or the conditions for the acquisition of nationality through the medium of its domestic law making.

International Law before Municipal Laws

- *The problem of the role of international law within the municipal law system is, however, rather more complicated than the position discussed above and there have been a number of different approaches to it.*
- States are, of course, under a general obligation to act in conformity with the rules of international law and will bear responsibility for breaches of it, whether committed by the legislative, executive or judicial organs and irrespective of domestic law.

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- Further, international treaties may impose requirements of domestic legislation upon states parties, while binding Security Council resolutions may similarly require that states take particular action within their jurisdictions.
- There is a clear trend towards the increasing penetration of international legal rules within domestic systems coupled with the exercise of an ever-wider jurisdiction with regard to matters having an international dimension by domestic courts.

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- This has led to a blurring of the distinction between the two previously maintained autonomous zones of international and domestic law, a pre-evaluation of the role of international legal rules and a greater preparedness by domestic tribunals to analyze the actions of their governments in the light of international law.

The Ethiopian Context

- *The Ethiopian context is controversial and debatable.*
- Different scholars reflect different opinions towards it.
- *In the history of written constitutions in Ethiopia none of them mentioned the non-treaty source of international law.*
- But this does not mean that Ethiopia is relieved from her international obligation but from domestic application of international laws emanated from sources other than agreement.
- Historically, the process of treaty making, both bilateral and multilateral, is not new to Ethiopian government.

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- There have been several treaties Ethiopian monarchs concluded with colonials' power.
- Until the 1931 Constitution there were no laws that govern the treaty making procedures.
- Both the 1931 and 1955 Constitutions give exclusive power for the approval/ratification of treaties.
- The 1987 and 1995 Constitution give power to executive to conclude treaties and make it subject to parliament approval.

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- There are countries which allow direct effect of international law in domestic system like USA, Germany and Poland.
- However, the FDRE Constitution does not make any distinction among treaties which require ratification or not according to the subject matter.
- *With regard to the issue whether ratification by HPR (House of Peoples Representatives) is mandatory or Federal Executive Organ can bring international treaties into effect without ratification, most scholars argue that from the provisions stipulated under Article 9 (4), 51 and 55 (12) of the Constitution we can understand that international treaties not ratified by HPR cannot be integral part of the law of the land.*

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- Thus the executive can only negotiate and sign international agreements.
- Besides, these provisions indicate that there are no international agreements exempted from ratification like that of other countries.
- But it is argued that like that of USA senate, HPR may authorize, by law, executive to conclude agreement which will have direct effect domestically without ratification.
- This argument is substantiated by constitutional provisions of Article 74 (2) and 77 (12) which authorizes HPR to confer such responsibility to Prime Minister and Council of Ministers.

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- In practice, Article 10 (1) (i) of Proc. No. 1097/2018 give responsibility to ministries to conclude international agreement in their respective affairs.
- Process of treaty making in Ethiopia is under the direction of executive and it might be via signature of newly drafted treaty or acceding to an existing treaty.
- Both are subject to ratification as per Article 55 (12).
- Participation in drafting and signature of international agreements will be made by Ministry of Foreign Affairs in consultation with concerned special ministry.

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- In acceding process it is concerned ministry that should make sense about the need to adopt and ratify the treaty to Council of Ministers.
- Before the ratification by HPR, the Prime Minister and Council of Ministers must approve the treaty for the initiation of ratification process.
- The ratification process is similar to that of the ordinary law making process of HPR.
- After the ratification of treaties, different countries adopt different approaches towards incorporation of the treaties into domestic legal system.

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- Some follows “monist approach” which considers the international treaties and domestic laws as parallel-require no further procedure after their ratification to have legal effect in national legal system (USA, Germany, Bulgaria).
- Others follow “dualist approach” which requires parliamentary action, notification law, to incorporate the treaty to the national legal system (Germany, South Africa and UK).
- Ethiopian approach is not clear under the Constitution or any other laws.

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- Some authors argue, based on Article 71 of the Constitution, that publication in the Negarit Gazette is mandatory.
- Others argued that based on Article 9 (4) of the Constitution, mere ratification is sufficient for treaties to have effect domestically.
- According to them, treaty follows the same procedure with adoption of proclamation and there is no constitutional provision that require publication of treaty after ratification.

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- Besides, there is no law in Ethiopia that makes publication of law as validity requirement.
- The practice shows no publication of treaties in the official Negarit Gazzete.
- Some others argue Ethiopia follows dualism theoretically and monism in practice.
- Treaties may also be self executing or not self executing.
- Self executing treaties require not further laws or executive act of elaboration but justiciable or can be enforced by courts.

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- Otherwise they are not self executing treaties.
- Ethiopia did not make such distinction both legally and practically by reserving or making declaration as to the body of treaty.
- With regard to termination of ratified treaties historically it is the 1987 Constitution that clearly authorizes Council of State to terminate.
- Since Ethiopia is not a party to VCLT, some argue that it is HPR that have power to terminate, as it ratify it unless the treaty provisions preclude it.

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- Among historically written constitutions of Ethiopia only the 1955 Constitution under its Article 122 that clearly stipulates the supremacy of the Constitution over international laws.
- The current constitution says nothing in this regard clearly.
- Some argue that international treaties are equal with the Constitution and human right treaties are superior to the Constitution and sub-constitutional laws are subordinate to treaties.
- Others argued that the Constitution is supreme and treaties are equal with proclamation.

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- They argued that treaties and proclamation are equal and when they conflict the rule of *lexi posteriori derogat legi priori* will apply.
- Article 13 (2) of the Constitution order the courts and judicial organs not only to refer the text of treaties but also an interpretation given to such treaties by international bodies.